
Appeal Decision

Site visit made on 31 August 2026

by S. Hartley BA (Hons) Dist.TP (Manc) DMS MRTPI MRICS

an Inspector appointed by the Secretary of State

Decision date: 7 September 2026

Appeal Ref: 6011039

23A Rowms Lane, Swinton, Rotherham, S64 8AA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 against a refusal to grant planning permission.
 - The appeal is made by EI Property Limited and Century Cladding Holdings against the decision of Rotherham Metropolitan Borough Council.
 - The application is reference RB2025/1462.
 - The development proposed is the change of use of a building from B2 (General Industrial) to E(c)iii (other appropriate services in a commercial business or service locality).
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Decision

1. The appeal is dismissed.

Procedural Matters

2. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework). This is a relevant material planning consideration of 'critical importance' from a decision-making point of view. In respect of the main issue, the Framework has not materially changed the national planning policy position. The relevant national decision-making policy in the Framework is policy TR6 (Assessing Transport Impacts).
3. The appellant states that a Class E use is currently being operated from the building. I am not entirely sure from the evidence whether such a use is in precise accordance with the proposal. In this regard, I have not determined this appeal on the basis of it being a retrospective proposal.

Application for costs

4. An application for costs is made by the appellant against Rotherham Metropolitan Borough Council. This application is the subject of a separate Decision.

Main Issue

5. The main issue is the effect of the proposed development upon highway safety in respect of the width of the access road, sightlines and the intensification of its use.

Reasons

6. The site relates to an area off Rowms Lane approximately 1 kilometre northeast of the main pedestrianised retail centre of Swinton. The site lies immediately to the

south of some residential properties. To the south and east are a mix of residential properties and small industrial and business units. The main industrial areas, including the Swinton Meadows Industrial Estate, lay to the northeast of the site. The site is allocated for industrial and business purposes in the Development Plan. There is no dispute between the main parties that the proposal would be capable of being suitable in land use principle terms in the context of the area.

7. Notwithstanding the description of the proposed development upon the submitted planning application form, the appellant does not dispute what is contained in the Council's officer report in terms of the additional clarity about the proposal which was requested by the Council's officer. The proposal relates specifically and only to the building as shown on the submitted red edged location plan. No alterations or proposals are shown in terms of the existing access or the car parking arrangements.
8. The Council's officer report states that "*The applicant further intended to try and clarify the proposal which can be summarised in more detail below: 2 hairdressing chairs, 3 brow chairs, 3 nail desks, 1 massage room, 1 tattoo room, All appointment only. Monday – Friday 08.30 - 19.30 (Monday most staff off), Saturday – 08:00 - 14:00, Sunday – 10:00 - 14:00 (rarely)*".
9. The Highway Authority was consulted as part of the determination of the planning application. The adverse comments of the Highway Authority were summarised in the Council's officer report, and such concerns formed the basis of the Council's reasons for refusal.
10. I concur with the position of the Highway Authority in terms of highway safety concerns. Access to the application site is derived directly from Rowms Lane and is sited approximately 10 metres southwest of the junction with Talbot Road. My site visit observations did not lead me to conclude that the Highway Authority was incorrect in stating that the width of the access is about 4.5 metres. It is noteworthy that the appellant does not dispute this finding. I do not find the width of the access road to be sufficient to allow two vehicles to pass each other safely. Consequently, any use of the building has the potential for a vehicle(s) to have to reverse back into the B classified road. This would be unacceptable in highway safety terms given possible conflicts between vehicles.
11. In addition to the above, visibility at the vehicular access when exiting is substantially restricted to the left by adjacent properties and parked cars, with intervisibility between vehicles exiting the site and pedestrians walking along Rowms Lane being particularly poor. Therefore, a driver of a vehicle leaving the access must emerge into the highway before an acceptable degree of visibility is available. This is not a safe arrangement: it could be harmful from a pedestrian road safety point of view. Bus stops are located in close proximity to the site and there is regular pedestrian activity along the adjacent footway.
12. I recognise that some may travel to the site by bicycle or on foot. However, there is no evidence to suggest that no customers or staff would not arrive in a vehicle. The appellant's position is that the appeal building has a lawful B2 use and, considering this claimed fallback position, the proposal would be less intensive in terms of traffic movements. It is asserted that the effect on highway safety would be no worse (or better) in relative terms. The appellant also points out that, unlike the asserted

unrestricted B2 use of the building, it would be possible in this case to impose conditions which restrict the proposed Class E use, as well as limiting the number of customers which could visit the premises operating on an appointment only basis.

13. The appellant's evidence, including aerial photographs and a utility bill dated 2025, does not collectively provide sufficiently precise and unambiguous evidence to demonstrate that the building has lawfully been used as a B2 use, on the balance of probability, for a continuous period of ten years. I acknowledge that the evidence, including comments from the Council, appear to suggest that the building has been used previously, including as a car repairs/MOT testing centre, but that does not mean that any such use has been carried out for a sufficient amount of time for it to be lawful and hence immune from enforcement action. Moreover, just because the description of development refers to a change of use from B2 to E3, this does not in itself mean that there is a lawful B2 use in place.
14. Given the above, I cannot conclude, on the balance of probability, that the building can lawfully be used for B2 use purposes. Hence, I cannot conclude that there is a lawful fallback position in existing use terms. In any event, this is not a determinative matter. Even if I had found, on the balance of probability, that the lawful use of the building was class B2, I do not have sufficient information before me of a relative assessment in intensity/traffic terms (i.e., a transport assessment) to suitably demonstrate that, despite the identified highway safety concerns, the proposal would either not make highway safety considerations worse or indeed would offer a better solution.
15. Given the above, I cannot conclude that the proposal would not have an unacceptable impact upon highway safety. The lawful fallback position is uncertain in this case, and the appellant's assessment of highway safety impact is in any event lacking in relative terms.
16. In my judgement, the imposition of suggested conditions is not appropriate in this case where I have concerns about their enforceability relating to appointments and/or the number of customers.
17. Therefore, I conclude that the proposal fails to accord with the highway safety requirements of policy TR6 of the Framework and the traffic circulation/management requirements of policy SP26 of the Rotherham Local Plan Sites and Policies 2018.
18. I do not find that policy CS14 of the Rotherham Local Plan Core Strategy 2014 is of direct relevance to the main issue as it essentially relates to accessibility as distinct from highway safety and traffic management issues.

Other Matters

19. I acknowledge that the proposal would deliver some economic benefits and would seek to utilise previously developed land. However, neither these factors nor any other matters sufficiently outweigh my conclusion on the main issue.

Overall Conclusion

20. For the reasons given above, I conclude that the development would not accord with the development plan for the area taken as a whole, or the highway safety

requirements of the Framework, and there are no material planning considerations that indicate that the application should be determined other than in accordance with the development plan. Therefore, the appeal should be dismissed.

INSPECTOR

S. Hartley